

P.F.Lorence vs State Of Kerala on 26 May, 2016

Author: P.Ubaid

Bench: P.Ubaid

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR. JUSTICE P.UBAID

THURSDAY, THE 26TH DAY OF MAY 2016/5TH JYAISHTA, 1938

Bail Appl..No. 3150 of 2016

CRIME NO. 335/2013 OF CRIME BRANCH, PALAKKAD

PETITIONER(S)/ACCUSED NOS 6 & 8:

1. P.F.LORENCE, AGED 49 YEARS,
COMMERCIAL TAX INSPECTOR,
COMMERCIAL TAX CHECK-POST, VALARA.
2. A.R DAS,
AGED 59 YEARS, COMMERCIAL TAX INSPECTOR,
COMMERCIAL TAX CHECK-POST, WALAYAR.

BY ADVS.SRI.P.VIJAYA BHANU (SR.)
SRI.M.REVIKRISHNAN
SMT.MITHA SUDHINDRAN

RESPONDENT(S)/COMPLAINANT:

STATE OF KERALA,
REPRESENTED BY PUBLIC PROSECUTOR,
HIGH COURT OF KERALA, ERNAKULAM.

BY SENIOR PUBLIC PROSECUTOR SRI.C.RASHEED

THIS BAIL APPLICATION HAVING BEEN FINALLY HEARD ON 26-05-2016,

THE COURT ON THE SAME DAY PASSED THE FOLLOWING:

PJ

P.UBAID, J.

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B.A.No.3150 of 2016

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Dated this the 26th day of May, 2016

ORDER

The petitioners seek pre arrest bail on the apprehension of arrest in Crime No.335 of 2013 of the Crime Branch, Palakkad. The petitioners happened to be implicated, and arraigned as accused while they were working in the Sale Tax Check Post, Neduppunni in various capacities. The facts and allegations need not be explained in so many words. In brief, the allegation is that in violation of a Government Order that cash shall not be received towards sales tax amounts the petitioners received either cheques or Demand Drafts. The cheques so received happened to be bounced, and the Demand Drafts were found to be forged, later. Then came a prosecution against the different Sales Tax Officers. The very short question is whether any of the accused was in any manner benefited by the alleged act. I find that what is prominently alleged is only violation of the Government Order. Even the Demand Drafts received in compliance of the Government Circular were found to be forged. Thus ultimately the State lost a huge amount of Rs.13 Crores. It is submitted that proceedings are now going on to recover the amount of tax from the various persons who submitted false Demand Drafts or cheques. These petitioners are being prosecuted under Section 420 IPC on the allegation that they cheated the Government. The State must fairly concede that these petitioners are not in fact liable under Section 420 IPC. Admittedly, none of the accused was in any manner benefited by the alleged crime. Custodial interrogation of any of the petitioners is not necessary as part of investigation in this crime. The Investigating Officer has already seized the relevant documents including the questioned cheques and Demand Drafts. Interrogation of the petitioners in custody is not necessary, because even otherwise necessary materials have already been collected. I find that these petitioners can be granted pre arrest bail.

In the result, this application is allowed. The petitioners are ordered to be released on bail on their executing a bond with two solvent sureties for 25,000/- (Rupees Twenty Five Thousand only) each to the satisfaction of the arresting officer or the learned Magistrate having jurisdiction, as the case may be, in case of their arrest in connection with Crime No.335 of 2013 of the Crime Branch, Palakkad. Bail is granted on condition that;

a) The petitioners shall report before the investigating officer as and when required by him for the purpose of interrogation as part of investigation, and that the petitioners shall not in any manner obstruct the investigation or tamper with any of the documents or registers involved in the case.

Sd/-

rkj

P.UBAID, JUDGE

//TRUE COPY//

P.A. TO JUDGE